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PROVINCIAL ASSEMBLY OF THE PUNJAB

NOTIFICATION

December 18, 2025

No. PAP/Legis-2(83)/2025/637. The Punjab Protection of Ownership of Immovable Property Bill 2025, having been passed by the Provincial Assembly of the Punjab on December 08, 2025, and assented to by the Governor of the Punjab on December 17, 2025, is hereby published as an Act of the Provincial Assembly of the Punjab.

THE PUNJAB PROTECTION OF OWNERSHIP OF IMMOVABLE PROPERTY ACT 2025

ACT CI OF 2025

[First published, after having received the assent of the Governor of the Punjab, in the Gazette of the Punjab (Extraordinary) dated December 18, 2025.]

An

Act

to protect lawful ownership of immovable property in the Punjab.

It is necessary to protect lawful ownership of immovable property and to provide effective legal remedies against dispossession of a lawful owner from his immovable property and to provide a mechanism for expeditious resolution of disputes arising therefrom and for the matters connected therewith and ancillary thereto.

It is hereby enacted by Provincial Assembly of the Punjab as follows:

1. Short title, extent and commencement.– (1) This Act may be cited as the Punjab Protection of Ownership of Immovable Property Act 2025.

(2) It extends to whole of the Punjab.

(3) It shall come into force at once.

2. Definitions.– In the Act:

(a) "Act" means the Punjab Protection of Ownership of Immovable Property Act 2025;

(b) "Committee" means the Dispute Resolution Committee provided under section 8 of the Act;

(c) "Government" means Government of the Punjab;

(d) "immovable property" includes land, building, benefit to arise out of land, things attached to the earth, or permanently fastened to anything attached to the earth, but does not include:

(i) standing trees, crops or grass whether immediate severance thereof is intended or not;

(ii) fruit upon and juice in trees whether in existence or to grow in future; and

(iii) machinery embedded in or attached to the earth, when dealt with apart from the land;

(e) "Member" means the Member of the Tribunal;

(f) "person" includes in the case of a company or a body corporate, the sponsors, Chairman, Chief Executive, Managing Director, Directors, guarantors of the company or body corporate or any one exercising direction or control of the affairs of such company or a body corporate; and, in the case of any firm, partnership or sole proprietorship, the partners, proprietor or any person having direction or control thereof;

(g) "prescribed" means prescribed by the rules;

(h) "rules" means rules made under the Act; and

(i) "Tribunal" means the Tribunal established under section 11 of the Act.

3. Overriding effect.– Notwithstanding anything, contained to the contrary in any other law for the time being in force, the provisions of the Act shall override the provisions of such other law.

4. Illegal possession.– Whoever, whether himself or through any other person, obtains or retains possession of any immovable property without lawful authority or lawful means or through fraud, deceit, cheating, dishonesty, forgery, misrepresentation, intimidation, force, coercion or any other illegal means, shall be

guilty of an offence which shall be punishable with imprisonment for a term which may extend to ten years but shall not be less than five years.

5. Punishment for attempt, abetment, etc.– (1) Any person who attempts, aids, abets, facilitates or conspires for the commission of an offence under the Act and who:

(a) sells or allots, or offers or advertises for sale or allotment, or has in his possession for the purpose of sale or allotment any immovable property illegally possessed; or

(b) instigates or incites any person to illegally possess immovable property; or

(c) uses any illegally possessed immovable property or causes or permits knowingly such property to be used for sale or allotment; or

(d) enters into an agreement for construction of any structure or buildings on such immovable property; or

(e) causes or procures or attempts to procure any person to do any of above-mentioned acts; or

(f) interferes or refuses to comply with any direction of the Tribunal or obstructs the proceedings of the Tribunal;

shall be punished with imprisonment for a term which may extend to three years but shall not be less than one year and with fine which may extend to one million rupees:

Provided that nothing contained in this sub-section shall render any such person liable to any punishment if he proves that the offence was committed without his knowledge or that he has exercised all due diligence to prevent the commission of such offence.

(2) The punishment awarded under this section shall be in addition to any other punishment to which the offender may be liable under any other law for the time being in force.

6. Offences by companies or other entities.– (1) Where an offence under any of the provisions of the Act has been committed by a company, society, association or any entity, every person who, at the time the offence was committed, was in charge of and was responsible to the company, society, association or any entity for the conduct of business of the company, society, association or any entity, as well as the company, society, association or any entity, shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any such person liable to any punishment if he proves that the offence was committed without his knowledge or that he has exercised all due diligence to prevent the commission of such offence.

(2) Notwithstanding anything contained in sub-section (1), where any such offence has been committed by a company, society, association or any entity and it is proved that the offence has been committed with the consent or connivance of or is attributable to any neglect on the part of any director, manager, secretary or other officer of the company, society, association or any entity, such director, manager, secretary or other officer shall be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

7. Filing of complaint.– (1) A complaint, for an offence under the Act, may be filed by the owner or title holder of the immovable property with the Deputy Commissioner of the district in which the property is situated.

(2) The complaint shall include details of the property, evidence of lawful title, and particulars of offender.

8. Dispute Resolution Committee.– (1) A complaint received under section 7 shall be entrusted to the following Dispute Resolution Committee, for each district:

(a) Deputy Commissioner (Convener);
(b) District Police Officer;
(c) Additional Deputy Commissioner (Revenue) of the district;
(d) Assistant Commissioner concerned;
(e) Sub-Divisional Police Officer concerned; and
(f) an officer of any agency of the Government, to be co-opted by the Committee.

(2) The Committee may:

(a) scrutinize the relevant record and provide hearing to all concerned;
(b) summon any person and inquire into the matter;
(c) take any administrative action as it may deem appropriate to protect and safeguard the ownership of immovable property but such action shall not be inconsistent with any provision of any law for the time being in force;
(d) report any instance of corruption, collusion or misconduct by a public official or any other stakeholder in the process of dispute resolution or disposal of complaint and recommend disciplinary or legal action to the competent authority of such public official; and
(e) encourage amicable resolution of disputes.

(3) The dispute resolution process shall be concluded within ninety days from the date of filing of the complaint:

Provided that the Commissioner of the concerned division may extend such period of ninety days for a further period of up to ninety days upon written request by the Committee to be initiated within the time frame above.

(4) The Committee, during the dispute resolution, shall have the powers of a civil court under the Code of Civil Procedure, 1908 (V of 1908) for summoning of persons and inquiry into the matter.

(5) The Committee may, on its own motion, exercise the powers provided under sub-section (4) to call for any relevant record for resolution of a dispute under the Act and proceed as provided under sub-sections (2) to (4).

(6) Notwithstanding anything contained in any other law for the time being in force, the Committee, through its convener, may apply to any court of law or tribunal that any case involving illegal possession of immovable property under the Act, pending for trial before such court or tribunal, be transferred to the Tribunal and such other court or tribunal shall transfer the said case to the Tribunal.

(7) The parties shall appear before the Committee in person and appearance through counsel shall not be permissible:

Provided that if a party is unable to appear in person, the Committee may, on the written request of such party, allow his appearance through electronic means or through spouse or a blood relative.

9. Preventive measures.– (1) In case, an owner or title holder of immovable property apprehends commission of an offence under the Act, he may file application before the Deputy Commissioner concerned for taking preventive measures.

(2) On receipt of the application under sub-section (1), the Deputy Commissioner shall refer the matter to the Committee which may call all the relevant parties, in person, and after examining the relevant record and hearing the parties, pass such order as it may deem fit and appropriate and such order may include taking reasonable and adequate surety or guarantee from the party concerned or sealing of the property.

10. Reference to Tribunal.– (1) In case, the dispute has been resolved, the Committee shall reduce it into writing and send the same to the Tribunal for its approval and for passing judgment and decree thereupon.

(2) If dispute resolution fails or stipulated time elapses without a resolution, the Committee shall, within thirty days of expiry of the stipulated period, refer the matter, with its opinion, to the Tribunal for its decision.

(3) In case the complaint is found false, frivolous or vexatious, the Committee may recommend to the Tribunal to try the complainant for the offence under sub-section (4).

(4) In case, a person files a complaint which is found false, frivolous or vexatious by the Committee, he shall be liable to be punished with imprisonment for a term which may extend to five years but not less than one year and fine not exceeding twenty-five percent of the value of the property concerned as contained in the valuation table notified under the Stamp Act 1899 (II of 1899), however, such fine shall not be less than one hundred thousand rupees.

11. Establishment of Tribunal.– (1) The Government may, by notification in the official Gazette, establish as many Tribunals as it considers necessary to exercise jurisdiction under the Act but there shall be at least one Tribunal in each district.

(2) Where Government establishes more Tribunals than one, it shall specify, in the notification, the territorial limits within which each of such Tribunals shall exercise its respective jurisdiction under the Act.

(3) Each Tribunal shall be headed by a Member to be appointed, for a period of three years, by the Government on the nomination by the Chief Justice of Lahore High Court.

(4) No person shall be appointed as a Member unless he has been a Judge of the Lahore High Court or a District Judge.

(5) The salary, allowances and other terms and conditions of service of a Member shall be such as the Government may prescribe.

12. Resignation and removal of Member.– (1) A Member may, by notice in writing under his hand addressed to the Government, resign from his office.

(2) A Member may be removed from the office by the Government prior to completion of his tenure, after seeking consultation with the Chief Justice of the Lahore High Court.

13. Exclusive jurisdiction of Tribunal.– Notwithstanding anything contained in any other law for the time being in force, the Tribunal shall have exclusive jurisdiction to try the offences under the Act.

14. Burden of proof.– Notwithstanding anything contained in any other law for the time being in force including Qanoon-e-Shahadat 1984 (X of 1984), the onus of proof, in case of illegal possession, shall lie on the offender under the Act.

15. Tribunal to have the powers of a civil court and a court of sessions.– Save as otherwise expressly provided in the Act, the provisions of the Code of Civil Procedure, 1908 (V of 1908) and the Code of Criminal Procedure, 1898 (V of 1898), in so far as they are not inconsistent with the provisions of the Act, shall apply to the proceedings before the Tribunal and for the purposes of the provisions of the said enactments, Tribunal shall be deemed to be a Civil Court, or as the case may be, a Court of Sessions and shall have all the powers of a Civil Court and Court of Sessions.

16. Procedure of the Tribunal.– (1) The Tribunal shall, upon referral of the matter by the concerned Committee, take cognizance of it and try every case arising out of any alleged offence with respect to the ownership and title to, or possession of immovable property occupied illegally whether before or after the commencement of the Act, and pass such orders as it deems fit.

(2) Notwithstanding anything contained in the Act or any other law for the time being in force, the Tribunal shall also have exclusive jurisdiction to determine the question of title, if any, of the immovable property under reference and for the purpose, may, for reasons to be recorded in writing, follow such summary procedure as it deems appropriate.

(3) The Tribunal shall try the offences under the Act in accordance with the procedure provided under Chapter XXIIA of the Code of Criminal Procedure, 1898 (V of 1898).

(4) Notwithstanding anything contained in sub-section (3) or in any other law for the time being in force, the Tribunal may, for reasons to be recorded in writing, dispense with any provision of the Code of Criminal Procedure, 1898 (V of 1898) and follow such procedure as it may deem fit in the circumstances of the case.

(5) Every case shall be proceeded on day-to-day basis and shall be decided by the Tribunal within a period of ninety days from the date of its receipt by the Tribunal.

(6) The Tribunal may award monetary compensation for wrongful and illegal possession of immovable property which shall not be less than the value of the immovable property so possessed, as determined in accordance with the valuation table notified under the Stamp Act 1899 (II of 1899), as on the date of the order and in addition thereto, the Tribunal may order payment of any profit or gain accrued from such property or any superstructure constructed thereupon, by the

offender to the lawful owner, and may further direct restoration of possession of the immovable property to its lawful owner.

(7) The amount of compensation and profit, so awarded and cost of restoration of possession, if any, shall be recovered as arrears of land revenue.

(8) The Tribunal may, at any stage of the case, order the arrest of a person for an offence under the Act, through police or an agency or authority of the Government.

(9) Upon transfer of a case under sub-section (6) of section 8, the Tribunal shall proceed in the case as provided under this section and it shall not be necessary for it to re-examine any witness or record any evidence that has already been recorded; however, the Tribunal may refer such case to the Committee for resolution of the matter or for its opinion and the Committee shall, thereafter, proceed in accordance with section 8.

(10) Upon conclusion of the trial, the Tribunal, while deciding the title or ownership of the immovable property, shall pronounce a judgement and pass a decree accordingly.

17. Eviction and mode of recovery as an interim relief.– (1) The Tribunal may, at any stage of the case, regulate the possession of immovable property and issue such interim orders as it deems appropriate.

(2) For the purpose of securing compliance with an order made under sub-section (1), the Tribunal may authorize any officer, official, or authority of the Government to take possession of the property, and the officer, official or authority so authorized may use, or cause to be used, such force as may be necessary for giving effect to the order.

18. Delivery of possession to owner.– (1) Upon conclusion of trial, the Tribunal shall order delivery of the possession of immovable property to its lawful owner, if such owner is not already in possession.

(2) For the purposes of sub-section (1), the Tribunal may direct the officer-in-charge of the police station or any other agency or authority of the Government, to render such assistance as may be necessary for securing delivery of possession of the immovable property.

19. Appeal.– (1) An appeal against the final order or judgement and decree of the Tribunal shall lie to the Lahore High Court before a bench comprising of two judges to be nominated by the Chief Justice of the Lahore High Court:

Provided that no appeal shall lie against an order relating to voluntary return or judgment and decree passed under sub-section (1) of section 10.

(2) No appeal or revision shall lie against an interim order or interlocutory order passed by the Tribunal and no court, including the High Court shall have the jurisdiction to stay the proceedings before the Tribunal.

20. Prohibition of alienation.– Any transaction involving alienation of immovable property which is the subject matter of the reference or any part thereof, whether by sale, lease, gift, exchange, settlement, surrender, usufructuary mortgage or otherwise, or any partition effected or a trust created in respect of such immovable

property after the filing of the complaint shall be null and void, except to the extent permitted by an order of the Tribunal.

21. Voluntary return of possession.– Where, at any stage prior to the submission of a reference by the Committee to the Tribunal, possession of the disputed immovable property is voluntarily restored to the lawful owner and such restoration is approved by the Tribunal, no further proceedings under the Act shall be continued.

22. Premises and staff of the Tribunal.– The Government shall provide the Tribunal with necessary premises, officers and other staff to enable it to discharge its functions under the Act.

23. Public Prosecutor.– The Government shall appoint, for each Tribunal, a Public Prosecutor on such terms and conditions as may be prescribed, and until such appointment is made, Public Prosecutors from the Public Prosecution Department of the Government shall be deputed to perform the functions of Public Prosecutor before the Tribunal.

24. Indemnity.– No suit, prosecution, or other legal proceeding shall lie against any Member, officer or official acting under the Act in good faith.

25. Power to make rules.– The Government may, by notification in the official Gazette, make rules for carrying out the purposes of the Act.

26. Removal of difficulties.– If any difficulty arises in giving effect to or applying the provisions of the Act, the Government may make such order, not inconsistent with the Act, as may be necessary for removing such difficulty.

27. Repeal.– The Punjab Protection of Ownership of Immovable Property Ordinance 2025 (VI of 2025) is hereby repealed.

Ch Amer Habib
Secretary General